

Eddie Delomprey v. PHH Mortgage Services, et al.
2025CUPR042037

Wednesday – August 19, 2026

Judge Trentacosta; Department 42

Motion: Defendants’ Demurrer to First Amended Complaint (*opposed*)

Tentative: The Court intends to CONTINUE moving party Defendants’, Onity Mortgage Corporation, formerly known as PHH Mortgage Corporation, erroneously sued as PHH Mortgage Serving, U.S. Bank National Association, as Trustee for Asset Backed Securities Corporation Home Equity Loan Trust, Series OOMC 2006-HE5, Asset Backed Pass Through Certificates, Series OOMC 2006-HE5, erroneously sued as U.S. Bank National Association, TTE, as Indenture Trustee on behalf of the GSAMP Trust 2006-HE5, Western Progressive, LLC and Premium Title of California Demurrer to the First Amended Complaint to a date in September, 2026 as set by the Court at this hearing.

The Opposition to Defendant’s motion was *filed very late, on August 17, 2026*. The Court intends to exercise its discretion to consider the Opposition because he only received it on August 13, 2026. At most, a short continuance should be provided to allow Defendant to respond. Judicial notice should be limited and the allegations should be liberally construed. The conclusions argued in the Demurrer are improper. The UD action does not preclude this action. The fact that there was a substitution of trustee does not establish that the entire FAC fails. Each of the causes of action plead sufficient facts, and even if the Court determines otherwise, leave to amend is requested.

The Court also notes that before reaching the merits of the Demurrer there is an issue of the operative Complaint. Here, the original Complaint was filed back in April 2025. Before being remanded back to Ventura County Superior Court in January 2026, it appears that a First Amended Complaint was filed in the USDC on December 9, 2025. While the FAC was only file-stamped “received” by the VCSC, on June 5, 2026, it appears to have been properly filed in federal court and seemingly should have been “filed”. The FAC is considered by both parties to be the operative pleading.

The problem is that on June 5, 2026, the VCSC also file-stamped “received” a Second Amended Complaint. Neither the FAC nor the SAC were rejected, but they were not filed either. So, while the SAC was filed before this Demurrer was filed, Plaintiff does not mention it. If filed, the SAC would clearly supersede the FAC. Instead of claiming that the SAC should have been filed, Plaintiff’s very late Opposition seeks to defend the causes of action in the FAC instead. The Court would ask the parties to clarify what allegations are at issue and whether Plaintiff intends to file the SAC or seek leave to amend in order to do so.